

Court No. - 32

Case :- WRIT - C No. - 37858 of 2019

Petitioner :- Sunil Kumar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Kuldeep Kumar

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Shashi Kant Gupta, J.

Hon'ble Neeraj Tiwari, J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate amount of Rs.50,575/- dated 16.02.2019 passed by respondent no.5.

(ii) Issue a writ, order or direction in the nature of certiorari quashing the impugned assessment/adjustment bill amount of Rs.50,525/- dated 05.12.2018 passed by respondent no.6.

(iii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to initiate any coercive action against the petitioner in pursuance of both impugned order dated 16.02.2019 and 05.12.2018.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally **disposed of**.

Order Date :- 26.11.2019

Junaid